Exhibit A

Nathan D. Chapman (SBN 338735)
nchapman@kcozlaw.com
KABAT CHAPMAN & OZMER LLP
333 S. Grand Avenue, Suite 2225
Los Angeles, California 90071
Telephone: (213) 493-3980
Facsimile: (404) 400-7333

Attorneys for Defendants Randstad US, LLC and Randstad North America, Inc.

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SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN BERNARDINO

NICHOLAS A. VENTURA

Plaintiff,

vs.

RANDSTAD US, LLC, RANDSTAD NORTH AMERICA, INC., HIREWELL, LLC, KORN FERRY, and KORN FERRY (US)

Defendants.

CASE NO. CIVRS2508108

Hon. Gilbert Ochoain (Dept. R17)

DEFENDANTS RANDSTAD US, LLC'S AND RANDSTAD NORTH AMERICA, INC.'S NOTICE OF DEMURRER TO PLAINTIFF'S COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF NATHAN D. CHAPMAN

[Filed concurrently with (Proposed) Order]

Hearing Date: January 22, 2026
Time: 9:00 am
Dept: R17

Complaint filed: September 25, 2025
Trial Date: Not Set

TO PLAINTIFF AND ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on January 22, 2026 at 9:00 a.m., or as soon thereafter as counsel may be heard, in Department R17 of the above-entitled Court located at 8303 Haven Avenue, Rancho Cucamonga, 91730, Defendants Randstad US, LLC and Randstad North America, Inc. (collectively, "Randstad"), will, and hereby does, demur to Plaintiff's January 25, 2025 Complaint ("Complaint").

This demurrer is made on the grounds that the entire Complaint fails to state facts sufficient to constitute causes of action against Randstad under Code of Civil Procedure Section 430.10(e). The entire Complaint, inclusive of the causes of action therein, are uncertain and ambiguous as to Randstad, and is therefore subject to Code of Civil Procedure Section 430.10(f).

The parties met and conferred in good faith via telephone pursuant to Cal. Code of Civ. Pro. § 430.41 on October 27, 2025, and could not reach an agreement as to the merits of this demurrer. *See* Declaration of Nathan D. Chapman at ¶ 2.

This demurrer is based upon this Notice, the attached Demurrer and Memorandum of Points and Authorities, Declaration of Nathan D. Chapman, and all records, papers and pleadings on file in this action, such oral argument as the Court may consider at the hearing of this matter, and any matters of which the Court may or must take judicial notice.

Dated: October 30, 2025

KABAT CHAPMAN & OZMER LLP

By: _____
Nathan D. Chapman

Attorneys for Defendants Randstad US, LLC and Randstad North America, Inc.

DEMURRER

Defendants Randstad US, LLC and Randstad North America, Inc. (collectively, "Randstad") hereby demurs to Plaintiff's Complaint on the following separate and distinct grounds:

1. Plaintiff's First Cause of Action for Conspiracy to Commit Fraud and Wire Fraud fails as he does not state facts sufficient to constitute any legally cognizable cause of action against Randstad pursuant to Code of Civ. Proc. § 430.10(e). The First Cause of Action is also uncertain, ambiguous and unintelligible. Code of Civ. Proc. § 430.10(f).
2. Plaintiff's Second Cause of Action for Unlawful Solicitation of Investment/Securities Fraud fails as he does not state facts sufficient to constitute any legally cognizable cause of action against Randstad pursuant to Code of Civ. Proc. § 430.10(e). The Second Cause of Action is also uncertain, ambiguous and unintelligible. Code of Civ. Proc. § 430.10(f).

WHEREFORE, Randstad prays for an Order that the Demurrer be sustained, in its entirety, without leave to amend because there are not, under any circumstances, sufficient facts to state a cause of action against Randstad and the causes of action are uncertain and ambiguous against Randstad.

MEMORANDUM OF POINTS OF AUTHORITIES

I. INTRODUCTION

Plaintiff Nicholas A. Ventura ("Plaintiff") filed his Complaint against Randstad US, LLC, Randstad North America, Inc. (collectively, "Randstad), Hirewell, LLC, Korn Ferry, and Korn Ferry (US), on September 25, 2025 the ("Complaint"). Based on his allegations, it appears that Plaintiff was the victim of a job scam.[1] As he admits, however, Randstad (a staffing company) had nothing to do with the alleged scam that conned him into allegedly purchasing cryptocurrency for the benefit of his scammers. (*See* Compl. ¶ 21 (admitting that unidentified third-party scammers "participated in a scheme to defraud Plaintiff . . . through the impersonation of legitimate recruiting companies," *i.e.* Randstad).) Instead, Plaintiff outright admits that the individuals who scammed him "impersonat[ed]" Randstad recruiters with "fraudulent recruiting personas" using Randstad's "company name[] and purported affiliations." (*See id.* ¶ 22.)

Plaintiff's Complaint must be dismissed with prejudice without leave to amend for several independent reasons. With respect to his first cause of action under the Racketeer Influenced and Corrupt Organizations Act ("RICO"), he fails to state a claim because (1) the RICO statute does not provide a private right of action for securities fraud claims; (2) Plaintiff has not alleged that Randstad knew about, acquired or maintained an interest in, or controlled the scammers' alleged enterprise; (3) Plaintiff failed to plead his fraud allegations with particularity; and (4) he seeks damages that are not available under RICO. With respect to his second cause of action for securities fraud, he fails to state a claim because (1) there is no private right of action under Section 17(a) of the Securities Act of 1933, 15 U.S.C. § 77q(a); (2) he failed to allege that Randstad offered or sold any security, engaged in any written or oral communication with Plaintiff, made any false or misleading statements to Plaintiff, or had any connection, control, knowledge, or cooperation with the alleged scammers; (3) Plaintiff failed to plead his fraud allegations with particularity; and (4) he seeks damages that are not available for this cause of action. Finally, as an independent ground for

[1] Randstad | How to Avoid and Report Job Scams, *available at* https://www.randstadusa.com/job-seeker/job-scams/ (last visited October 27, 2025) ("A concerning trend is growing in popularity: job scams. Individuals claiming to be recruiters use text messaging, social media, and other platforms to gather personal information under the pretense that they have a job offer for the recipient.").

dismissal of both causes of action, Plaintiff's entire Complaint is ambiguous and unintelligible.

For all these reasons, this demurrer should be granted, and the Court should dismiss with Complaint with prejudice, without leave to amend, as an amendment would be futile.

II. RELEVANT PROCEDURAL HISTORY AND FACTUAL BACKGROUND

According to the Complaint, Plaintiff applied to unspecified jobs on unspecified "staffing websites" in April 2024. (Compl. ¶ 8.) Shortly after, Plaintiff received a phone call from an unknown individual ostensibly "representing Randstad in [its] Life Sciences unit." (*Id.* ¶ 9 (cleaned up).) After an "interview-like" conversation, the unknown caller stated that he/she only had "positions for Coin Collectors and Trading Cards." (*Id.*) Plaintiff alleges that he thereafter started receiving text messages from unidentified "recruiters," purporting to represent Randstad and other companies, throughout April and June. (*Id.* ¶¶ 10–16.) Plaintiff alleges that their names were Annie, Cynthia, Emilia Clare, and Lee—though, critically, he does not allege that any of these individuals were employed by or associated with Randstad. (*See id.*) To the contrary, Plaintiff acknowledges that these individuals "participated in a scheme to defraud Plaintiff . . . through the ***impersonation of legitimate recruiting companies*** [*i.e.*, Randstad]." (*Id.* ¶ 21 (emphasis added).) Plaintiff alleges that these unknown individuals prompted him to create accounts on certain web platforms and eventually convinced him to use his own money to purchase cryptocurrency. (*Id.* ¶¶ 17–20.) After he made the purchases, the unknown individuals apparently stole the cryptocurrency from him. (*Id.* ¶ 20.)

Plaintiff asserts two causes of action. First, he alleges a claim for "Conspiracy to Commit Fraud and Wire Fraud," relying solely on 18 U.S.C. §§ 1961-1968. (*Id.* ¶¶ 21–23.) Plaintiff bases his cause of action on the following acts by the unknown individuals: (1) "creating and maintaining fraudulent recruiting personas using Defendants' company names and purported affiliations"; (2) "coordinating communications across multiple phone numbers and messaging platforms"; (3) "operating interconnected cryptocurrency investment platforms "Kurve.fun" and "Near.eco"; (4) "sharing common personnel and referencing the same individuals (including 'Emilia Clare') across different company impersonations"; and (5) "implementing standardized manipulation tactics including fake workbenches, group chats with fabricated success stories, and personal relationship building." (*Id.* ¶ 22.) In other words, Plaintiff's entire first cause of action is based on the conduct

of the unknown scammers, ***not Randstad***, and he admits the scammers "impersonat[ed]" Randstad recruiters with "fraudulent recruiting personas" using Randstad's "company name[] and purported affiliations." (*See id.*)

Second, Plaintiff alleges a claim for "Unlawful Solicitation of Investment/Securities Fraud," relying on the following laws: (1) Section 17(a) of the Securities Act of 1933, 15 U.S.C. § 77q(a); (2) Section 10(b) of the Securities Act, 15 U.S.C. § 78j(b); (3) Securities and Exchange Commission ("SEC") Rule 10b-5; and (4) California Corporations Code Sections 25401 and 25019. (*Id.* ¶¶ 26–29.) This cause of action is based entirely on his purchase of cryptocurrency under false pretenses. (*See id.*) And, like his first cause of action, Plaintiff bases this claim on the acts of the unknown scammers, including their: (1) making material misstatements and omissions of fact; (2) failing to disclose their true identities and lack of legitimate business operations; (3) misrepresenting the risks associated with the investments; and (4) failing to provide required disclosures regarding the investment schemes. (*Id.* ¶ 28.)

Plaintiff seeks economic damages exceeding $35,000, "non-economic damages to account for severe emotional distress," and "injunctive relief on behalf of others potentially harmed." (*Id.* at 8.)

III. LEGAL STANDARD FOR DEMURRER

A party against whom a complaint has been filed may object by demurrer to the pleading on the grounds that (1) the pleading does not state facts sufficient to constitute a cause of action; and/or (2) the pleading is uncertain, *i.e.*, ambiguous and unintelligible. Code Civ. Proc., § 430.10(e–f). A demurrer lies for defects appearing on the face of the complaint or from matters of which the Court must or may take judicial notice. *Stevens v. Superior Ct.*, 75 Cal. App. 4th 594, 601, 89 Cal. Rptr. 2d 370 (1999), *as modified* (Oct. 7, 1999), *as modified* (Oct. 18, 1999). If a defendant establishes the absence of any essential element of a cause of action, the court should sustain a demurrer. *Sher v. Leiderman*, 181 Cal. App. 3d 867, 871, 226 Cal. Rptr. 698 (Ct. App. 1986). When a complaint contains allegations fatal to a cause of action, a plaintiff cannot avoid those defects simply by filing an amended complaint that omits the problematic facts. *Banis Rest. Design, Inc. v. Serrano*, 134 Cal. App. 4th 1035, 1044, 36 Cal. Rptr. 3d 532, 538 (2005). A demurrer may be sustained without leave

to amend where there is no reasonable possibility that the defect can be cured by amendment; the burden is on the pleader to prove such a reasonable possibility. *Zelig v. Cnty. of Los Angeles*, 27 Cal. 4th 1112, 1126, 45 P.3d 1171 (2002).

IV. ARGUMENTS AND AUTHORITIES

A. Plaintiff's "Conspiracy to Commit Fraud and Wire Fraud" Claim Fails.

Plaintiff's first cause of action, based entirely on the RICO statute, 18 U.S.C. §§ 1961-1968, fails to state a claim for several independent reasons.[2] *See* Code of Civ. Proc. § 430.10(e). ***First***, the only civil private right of action in the RICO statute is under 18 U.S.C. 1964(c), which creates a cause of action for "[a]ny person injured in his business or property by reason of a violation of section 1962 of this chapter." *Id.* However, the statute contains an explicit exception to that private right of action: "no person may rely upon any conduct that would have been actionable as fraud in the purchase or sale of securities to establish a violation of section 1962." *Id*. Because Plaintiff is claiming that cryptocurrencies qualify as "securities" (Compl. ¶¶ 21, 23, 26) and asserts a claim for securities fraud based on the same facts, he has no private right of action under 18 U.S.C. 1964(c). *See Holland v. Lee*, No. CV221311DMGJPRX, 2023 WL 5505998, at *1 (C.D. Cal. July 14, 2023) ("[S]ection 1964(c) . . . is a broad prohibition on RICO claims for any conduct that could potentially have been actionable as securities fraud."). Thus, his first cause of action must fail for this simple reason alone.

Second, Plaintiff's claim fails because he has not shown that Randstad acquired or maintained an interest in or control of the alleged enterprise. *See U.S. Concord, Inc. v. Harris Graphics Corp.*, 757 F. Supp. 1053, 1060 (N.D. Cal. 1991) ("[T]o state a claim under Sections 1962(b) and 1964(c), a plaintiff must allege injury from the defendant's acquisition or control of an interest in a RICO enterprise."). Here, Plaintiff's allegations do the opposite, *i.e.*, Plaintiff's entire claim is based on the

[2] To the extent Plaintiff intended to assert a standalone claim under the federal wire fraud statute (*see, e.g.*, Compl. at 2), he fails to state a claim because there is no private right of action under that statute. *Bennett v. Juarez*, No. 2:25-CV-00930-AH (JDEX), 2025 WL 806382, at *3 (C.D. Cal. Feb. 25, 2025) (Plaintiff's claims for mail fraud and wire fraud, 18 U.S.C. §§ 1341, 1343, are even less likely to succeed on the merits as Congress did not provide a private right of action for either criminal statute.").

conduct of the unknown scammers, ***not Randstad***, and he admits the scammers "impersonat[ed]" Randstad recruiters with "fraudulent recruiting personas" using Randstad's "company name[] and purported affiliations." (Compl. ¶ 22.) Notably absent from the Complaint is any allegation that Randstad knew about, coordinated with, controlled, or was otherwise involved in the conduct of the scammers. (*See generally* Compl.) For this additional, independent reason, Plaintiff fails to state a claim against Randstad as a matter of law.

Third, Plaintiff's fraud-based allegations are not pleaded with particularity. *See In re WellPoint, Inc. Out-of-Network UCR Rates Litig.*, 865 F. Supp. 2d 1002, 1036 (C.D. Cal. 2011) ("Although RICO itself is not subject to . . . heightened pleading standards, predicate acts alleging fraud must be pleaded with particularity."); *see also Lauckhart v. El Macero Homeowners Assn.*, 92 Cal. App. 5th 889, 903, 310 Cal. Rptr. 3d 150, 162 (2023) ("Fraud must be pleaded with particularity. General and conclusory allegations are inadequate."). "This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered." *Lauckhart*, 92 Cal. App. 5th at 904. Plaintiff's allegations are extremely vague, conclusory, and plainly fail to meet the heightened standard required for fraud allegations. For example, Plaintiff claims that he applied to unidentified jobs on unidentified "staffing websites" and was then ushered into a series of conversations with unknown individuals posing as recruiters for various companies, including Randstad. (*See generally* Compl.) He fails to explain how Randstad was involved in any way with the alleged fraud, nor does he explain how he was convinced to invest thousands of dollars in cryptocurrency during an ostensibly legitimate job search. (*Id.*) Plaintiff's Complaint is bereft of any details connecting Randstad to the scammers or establishing agency, authorization, ratification, or participation by Randstad in the alleged fraud. *See* Code of Civ. Proc. § 430.10(e). For the same reasons, this demurrer should be granted under Code of Civ. Proc. § 430.10(f), because the Complaint is ambiguous and unintelligible.

Finally, the RICO statute only provides for money damages, so Plaintiff's claim fails to the extent he seeks "non-economic damages for severe emotional distress" and "injunctive relief on behalf of others potentially harmed." *See* 18 U.S.C. 1964(c). For all these reasons, Plaintiff's first cause of action must be dismissed.

B. Plaintiff's "Unlawful Solicitation of Investment/Securities Fraud" Claim Fails.

Plaintiff's second cause of action based on a slew of statutes and rules also fails to state a claim. *See* Code of Civ. Proc. § 430.10(e). As an initial matter, there is no private right of action under Section 17(a) of the Securities Act of 1933, 15 U.S.C. § 77q(a), so all claims under that statute fail. *Compare* Compl. ¶ 26, *with In re Washington Pub. Power Supply Sys. Sec. Litig.*, 823 F.2d 1349, 1358 (9th Cir. 1987) ("[N]o private right of action lies under Section 17(a).").

Further, Plaintiff's claim fails under either of the federal or state laws he cites, even assuming *arguendo* that the unidentified cryptocurrency he purchased qualifies as a "security." Under California Corporations Code: "Section 25401 makes it illegal to offer or sell a security in this state or buy or offer to buy a security in this state by means of any written or oral communication which includes an untrue statement of a material fact or omits to state a material fact necessary in order to make the statements made, in the light of the circumstances under which they were made, not misleading." *Moss v. Kroner*, 197 Cal. App. 4th 860, 872–73, 129 Cal. Rptr. 3d 220, 227 (2011) (cleaned up). Section 25501, in turn, creates a cause of action for recission or damages for a violation of Section 25401. *Id.* Here, Plaintiff has failed to allege that Randstad offered or sold any security, engaged in any written or oral communication with Plaintiff, or made any false or misleading statements to Plaintiff. *See id.* Further, as noted above, Plaintiff's Complaint is bereft of any details connecting Randstad to the scammers or establishing agency, authorization, ratification, or participation by Randstad in the alleged fraud. Thus, his claim under California law must fail.

Federal law is similar. "To state a claim under § 10(b) and Rule 10b-5, a complaint must allege: (1) a material misrepresentation or omission by the defendant ('falsity'); (2) scienter; (3) a connection between the misrepresentation or omission and the purchase or sale of a security; (4) reliance upon the misrepresentation or omission; (5) economic loss; and (6) loss causation." *In re Genius Brands Int'l, Inc. Sec. Litig.*, 763 F. Supp. 3d 1027, 1038 (C.D. Cal. 2025) (cleaned up). Here, Plaintiff has failed to allege virtually all elements of his claim against Randstad: (1) he failed to identify a single material misrepresentation or omission by Randstad; (2) he failed to allege any intent by Randstad; and (3) because Randstad did not make any misrepresentation/omission to him, he

cannot show a connection between that misrepresentation/omission and his purchase of cryptocurrency and subsequent loss. *See id.* Thus, Plaintiff's claim fails entirely.

Plaintiff's second cause of action also fails for the same reasons discussed in detail above, which are reincorporated here by reference. Specifically, none of his fraud-based allegations are pleaded with particularity, his Complaint is ambiguous and unintelligible, and none of the statutes on which he relies provide "non-economic damages for severe emotional distress" and "injunctive relief on behalf of others potentially harmed." Thus, Plaintiff's second cause of action must be dismissed as well.

C. Plaintiff's Complaint Should Be Dismissed Without Leave To Amend.

"[L]eave to amend should not be granted where . . . amendment would be futile." *Ivanoff v. Bank of Am.*, N.A., 9 Cal. App. 5th 719, 726, 215 Cal. Rptr. 3d 442, 449 (2017); *Vaillette v. Fireman's Fund Ins. Co.*, 18 Cal. App. 4th 680, 685, 22 Cal. Rptr. 2d 807 (1993). Here, Plaintiff's own allegations confirm that Randstad was not involved in the alleged fraud scheme at the heart of his Complaint and underlying both of his causes of action. Plaintiff cannot amend his Complaint now to implicate Randstad in the scheme, as doing so would be inconsistent with the allegations as they currently stand. *See Banis*, 134 Cal. App. 4th at 1044 ("[W]hen a complaint contains allegations that are fatal to a cause of action, a plaintiff cannot avoid those defects simply by filing an amended complaint that omits the problematic facts or pleads facts inconsistent with those alleged earlier."). For this reason and the incurable legal deficiencies described above, any amendment to the Complaint would be futile. This demurrer should therefore be granted in Randstad's favor without leave to amend.

V. CONCLUSION

For the foregoing reasons, Defendants Randstad US, LLC and Randstad North America, Inc. respectfully request that the Court sustain their demurrer and dismiss with prejudice Plaintiff's Complaint as against them with no further opportunity to amend.

Dated: October 30, 2025

KABAT CHAPMAN & OZMER LLP

By: _____

Nathan D. Chapman

Attorneys for Defendants Randstad US, LLC and Randstad North America, Inc.

DECLARATION OF NATHAN D. CHAPMAN

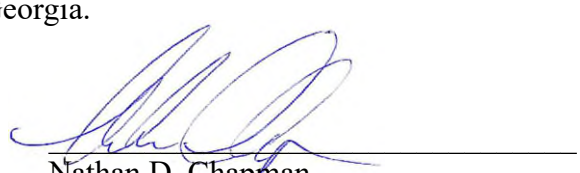
I, Nathan D. Chapman, declare as follows:

1. I am a Partner at Kabat, Chapman, & Ozmer LLP, and counsel of record for Defendants Randstad US, LLC and Randstad North America, Inc. (collectively, "Randstad") in connection with this matter. The facts set forth herein are of my own personal knowledge and if sworn I could and would testify competently hereto.

2. Pursuant to California Code of Civil Procedure, § 430.41, my office met and conferred with the *pro se* Plaintiff by phone regarding Randstad's intent to file a demurrer to the Complaint on October 27, 2025. My office informed Plaintiff that all of the causes of action pled in the Complaint were insufficiently pled against Randstad. Plaintiff disagreed with my office's assessment of the Complaint. No resolution could be reached.

I declare under penalty of perjury under the laws of the state of California that the foregoing is true and correct.

Executed October 30, 2025, at Atlanta, Georgia.



Nathan D. Chapman

PROOF OF SERVICE

STATE OF CALIFORNIA, COUNTY OF LOS ANGELES

I am employed in the County of Los Angeles, State of California; I am over the age of 18 and not a party to the within action; my business address is 333 S. Grand Avenue, Suite 2225, Los Angeles, CA 90071.

On October 30, 2025, I served the foregoing document(s) described **as DEFENDANTS RANDSTAD US, LLC'S AND RANDSTAD NORTH AMERICA, INC.'S NOTICE OF DEMURRER TO PLAINTIFF'S COMPLAINT; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF NATHAN D. CHAPMAN AND [PROPOSED] ORDER** on the interested parties to this action by delivering a copy thereof addressed to each of said interested parties at the following address(es):

Nicholas A Ventura
16232 Promontory Road
Chino Hills, CA, 91709
Email: nicholasaventura@hotmail.com
In Pro Per

☒ **(BY MAIL)** I am readily familiar with the business practice for collection and processing of correspondence for mailing with the United States Postal Service. This correspondence shall be deposited with the United States Postal Service this same day in the ordinary course of business at our Firm's office address. Service made pursuant to this paragraph, upon motion of a party served, shall be presumed invalid if the postal cancellation date of postage meter date on the envelope is more than one day after the date of deposit for mailing contained in this affidavit.

☒ **(BY COURT'S E-SYSTEM)** I caused such document to be delivered electronically via the Court's electronic filing system to the addressee(s) set forth in the attached service list.

☒ (State) I declare under penalty of perjury under the laws of the State of California that the above is true and correct.

Executed on October 30, 2025, at Los Angeles, California.

Windy Thor